

An Act

ENROLLED HOUSE
BILL NO. 3467

By: Boles, Gise, Archer,
Pogemiller, Waldron, and
Deck of the House

and

Pugh and Mann of the Senate

An Act relating to education employees; amending Section 1, Chapter 291, O.S.L. 2023, as amended by Section 3, Chapter 57, O.S.L. 2025 (70 O.S. Supp. 2025, Section 6-104.8), which relates to maternity leave; allowing maternity leave following certain adoption; clarifying use of sick leave; providing an effective date; and declaring an emergency.

SUBJECT: Education employees

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 291, O.S.L. 2023, as amended by Section 3, Chapter 57, O.S.L. 2025 (70 O.S. Supp. 2025, Section 6-104.8), is amended to read as follows:

Section 6-104.8. A. 1. Full-time employees of a public school district in this state who have been employed by the school district for at least one year and have worked at least one thousand two hundred fifty (1,250) hours during the preceding twelve-month period;

2. Persons employed full time as classroom instructional employees of technology center school districts supervised by the State Board of Career and Technology Education who have been employed by the technology center school district for at least one year and have worked at least one thousand two hundred fifty (1,250) hours during the preceding twelve-month period;

3. Persons employed as teachers by the State Department of Rehabilitation Services who have been employed by the State

Department of Rehabilitation Services for at least one year and have worked at least one thousand two hundred fifty (1,250) hours during the preceding twelve-month period;

4. Persons employed full time as correctional teachers or vocational instructors by the Department of Corrections pursuant to Section 510.6a of Title 57 of the Oklahoma Statutes who have been employed by a Department of Corrections facility for at least one year and have worked at least one thousand two hundred fifty (1,250) hours during the preceding twelve-month period; and

5. Persons employed full time as teachers by the Office of Juvenile Affairs who have been employed by an Office of Juvenile Affairs facility for at least one year and have worked at least one thousand two hundred fifty (1,250) hours during the preceding twelve-month period,

shall be entitled to six (6) weeks of paid maternity leave following the birth or adoption of the employee's child, provided that the child is under four (4) years of age. The six (6) weeks of paid maternity leave shall be used immediately following the birth or adoption of the school district employee's child.

B. 1. Paid maternity leave provided pursuant to paragraphs 1, 2, and 3 of subsection A of this section shall be in addition to and not in place of sick leave due to pregnancy, as authorized by Section 6-104 of this title.

2. Paid maternity leave provided pursuant to paragraph 4 of subsection A of this section shall be in addition to and not in place of sick leave due to pregnancy, as authorized by Section 510.6a of Title 57 of the Oklahoma Statutes.

3. Paid maternity leave provided pursuant to paragraph 5 of subsection A of this section shall be in addition to and not in place of sick leave due to pregnancy, as authorized by Section 2-7-202 of Title 10A of the Oklahoma Statutes.

C. 1. Employees described in subsection A of this section shall have the right to utilize accrued sick leave to extend the duration of their maternity leave beyond the six (6) weeks provided by this section. Such sick leave may be used for recovery from childbirth, bonding with a newborn or infant, or caring for a newborn or infant, and shall not require additional approval from a school board or employer, provided the employee has sufficient sick

leave to cover the extended duration. Sick leave used pursuant to this subsection shall not exceed six (6) weeks, unless a licensed medical professional provides written certification recommending additional leave for medical necessity related to the employee's recovery from child birth, or for the care of the newborn, to achieve a combined twelve (12) weeks of FMLA leave in accordance with paragraph 2 of this subsection.

2. An employee seeking to use sick leave to extend the duration of their maternity leave shall notify their employer in accordance with the Family and Medical Leave Act of 1993 (FMLA). FMLA leave shall run concurrently with the paid sick leave extended duration.

D. An employee who takes maternity leave pursuant to the provisions of subsection A of this section shall not be deprived of any compensation or other benefits to which the employee is otherwise entitled.

E. Each fiscal year, the Legislature shall appropriate adequate funding to the Public School Paid Maternity Leave Revolving Fund created in Section 6-104.9 of this title for the purpose of providing paid maternity leave to eligible school district employees pursuant to paragraph 1 of subsection A of this section. If the Legislature does not appropriate adequate funding specifically for the purpose of providing paid maternity leave to school district employees, the State Board of Education shall allocate from the funds appropriated to the State Board of Education for the support of public school activities an amount to fully fund paid maternity leave.

F. The State Board of Education, the State Board of Career and Technology Education, the Commission for Rehabilitation Services, the State Board of Corrections, and the Board of Juvenile Affairs may promulgate rules to implement the provisions of this section.

SECTION 2. This act shall become effective July 1, 2026.

SECTION 3. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 29th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____